Our Ref: 40320

15 November 2023

Auckland Council
Northern Resource Consenting & Compliance
50 Centreway Road
OREWA 0931

Email: RCRegulatorysupportorewa@aucklandcouncil.govt.nz

Dear Sir/Madam

APPLICATION FOR SECTION 223 APPROVAL
Client: Ray Nicklin and Desma Nicklin
Location: 53B Remiger Road, Puhoi
Council Ref: SUB60315119-A - LT 598139 (stage 2)

We request certification pursuant to Section 223 of the Resource Management Act 1991 for the subdivision above. Would you please arrange for the Certificate to be approved in Land*online* by the authorised officer, at your earliest opportunity.

We enclose the following for your action:
1. Resource Consent SUB60315119-A
2. Title Plan and Schedule LT 598139 (stage 2)

The subdivision has been pegged as detailed on the title plan, being in general accordance with the approved scheme plan. We comment on the conditions of Consent as follows.

4. Survey plan LT 598139 (stage 2) is attached herewith accordingly.

4. (a) The right of way and service easements required for Lot 3 are shown in the Memorandum of Easements attached to the dataset

4. (b) The bush protection areas relating to this stage being areas CS and CT have calculated areas of 5.55740 ha and 6.6140 ha respectively.

4. (c) The native bush to be protected with areas CS and CT are shown on the plan diagrams and endorsed on the Schedule attached as a supporting document to the plan dataset as area to be subject to a land covenant. We confirm that the covenant boundaries coincide with the stock proof fence.

4. (d) We enclose amalgamation covenant pursuant to s.220(2) of the Resource Management Act 1991 for your approval which holds Lot 6 together with the existing parcels encompassed within Lot 7 on the approved scheme plan. This same approach was taken for stage 1 of the consent. We request the existing amalgamation covenant registered by document 12243692.9 be cancelled.

This condition shall be incorporated into a covenant pursuant to s.220(2) of the Resource Management Act 1991. The covenant shall be signed by the registered owners and the signed covenant received by the council before the council will approve the survey plan pursuant to s.223 of the Act.

If you require further information, please contact me at bradm@catobolam.co.nz or telephone (09) 427 0072.

Yours sincerely
CATO BOLAM CONSULTANTS LTD

Brad Mowat
LICENSED CADASTRAL SURVEYOR

From: Nikki Ostermann
To: RC Regulatory Support Orewa
Cc: Brad Mowat
Subject: [#CBC 40320] s223 Request - SUB60315119-A, 53b Remiger Road, Puhoi - Stage 2
Date: Wednesday, 15 November 2023 12:41:48 pm
Attachments: VertM.png
LinkedIn2.png
5150136.png
Facebook2.png
s220(2) Amalgamation Covenant Stage 2.pdf
SUB60315119-A - Consent conditions.pdf
SUB60315119-A - Approved Plans.pdf
40320-SU-SU-ST01-B LT 598139.pdf
40320-LT-SU-TA03 223 request - Stage 2.pdf

Dear Regulatory Support Team

Please find attached a S223 application for the consent decision detailed below.

Consent Number:	SUB60315119-A
Site Address:	53B Remiger Road, Puhoi
Owner's Name:	Ray Nicklin
Owner's Postal Address:	PO Box 404243, Puhoi 0951
Owner's Phone Number:	027 479 5922
Owner's E-mail Address:	regan1992@icloud.com
Owner's Lawyer's Name, Firm and E-mail Address: (required if the consent requires the grant of an easement in gross in favour of Council)	Nicolene Du Toit of The Legal Team; Email nicolene@thelegalteam.co.nz
Who should invoices be addressed to: (if different from the above)	
Postal address for invoices: (if different from the above)	
E-mail address for invoices: (if different from the above)	

I confirm the following:

Covering letter or e-mail explaining how all s223 conditions have been satisfied and identifying and explaining any differences between the consent decision, the approved stamped scheme plan and the survey plan LT 598139 (stage 2) is attached	Yes
Latest consent decision is attached	Yes
Latest stamped approved scheme plan is attached	Yes
Survey plan LT 598139 (stage 2) is attached	Yes
Evidence that all s223 conditions have been satisfied is attached (as appropriate)	Yes
Survey plan LT 598139 (stage 2) has been uploaded to Landonline	Yes
I have authority to act on behalf of the owner and that they will be responsible for all costs incurred with processing this application	Yes

Regards

Cato Bolam
creating great places
PLANNERS | SURVEYORS | ENGINEERS
ARCHITECTS | ENVIRONMENTAL

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Christmas

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